

Plaintiff also argues that dismissal of the cross-complaint does not change the effect of the judicial admissions therein. Alternatively, if the Court does grant the motion, plaintiff asserts trial should be continued to allow plaintiff to file a demurrer and/or motion to strike.

The reply points out, inter alia, that defendants only challenge one of the three proposed amendments, and argues that the purported judicial admission regarding forgery should be used for impeachment, not to prohibit the filing of an amended answer. Defendants do not respond to the argument that they completely failed to comply with the requirements of California Rules of Court, rule 3.1324.

California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend a pleading must include a copy of the proposed amendment or amended pleading and what allegations are proposed to be added or deleted by page, paragraph, and line number, the additional allegations are located. In addition, such a motion must be supported by a declaration which specifies (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

The Court notes the liberal standard for granting a party, particularly a defendant, leave to amend. (See Code of Civil Procedure § 473(a)(1); see also, e.g., *Lincoln Prop. Co., N.C., Inc. v. Travelers Indem. Co.* (2006) 137 Cal.App.4th 905, 916 [court should exercise this discretion liberally in favor of amendments].) “In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense.” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159, citing cases.)

Generally, the validity of a proposed amendment is generally not considered in deciding whether to grant leave to amend. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 [disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 407.])

As suggested by plaintiff’s opposition, such challenges to the pleadings are more properly addressed in a demurrer or a motion to strike rather than in an opposition to a motion to amend. Still, the upcoming jury trial, as well as defendants’ failure to comply with the requirements in Rule 3.1324 to explain the delay and submit a copy of the proposed pleading require an appearance and discussion on these matters.

10. 9:00 AM CASE NUMBER: C22-02429
CASE NAME: HERMITAGE BREWING CORPORATION VS. CALICRAFT LLC
***HEARING ON MOTION IN RE: CONTINUE TRIAL**
FILED BY: CALICRAFT LLC
TENTATIVE RULING:

Summary

Defendant Calicraft LLC’s Motion to Continue Trial is **granted** based on the Declaration of its lead trial counsel that he will be unavailable due to a pending medical procedure. This ruling is based on three conditions: (1) Discovery is closed, except for expert discovery; (2) Counsel Josh Davis is ordered to provide additional information from his health care provider that verifies the facts set forth in his declaration filed on April 22, 2026 no later than ten (10) from the date of this order. Medical records or detailed medical information may be submitted under seal; (3) Counsel are ordered to meet and

confer to resolve any discovery issues that are outstanding. If they are unable to resolve these discovery issues, they shall meet and confer to retain a discovery referee

Background

This case involves an alleged dispute arising out of a business partnership between two companies. Plaintiff and Cross-Defendant Hermitage Brewing Corporation (“Hermitage”) is a business that operated a beer-brewing facility. Defendant and Cross-Complainant Calicraft, LLC (“Calicraft”), operates a retail beer establishment in Walnut Creek, California. For close to a decade, Hermitage produced and packaged Calicraft’s beer. In its operative cross-complaint, Calicraft alleged that in 2021, Hermitage and Calicraft agreed to make Hermitage the exclusive producer of Calicraft beer. In preparation for this transition, and with Hermitage’s knowledge and encouragement, Calicraft ended a long-term contract with another beer producer and invested in specialized equipment and packaging for use at the Hermitage facility in San Jose, California. During the time it entered into this contract, Calicraft alleges that Hermitage had already planned to wind-up its business, severely affecting Calicraft’s business operations and supply chain. Calicraft seeks damages for a breach of contract, among other things.

This case is set for trial on May 11, 2026. Calicraft filed a Motion to Continue this Trial (“Motion”) on March 24, 2026. This is the second motion to continue this trial. Calicraft makes this motion is based upon Cal. Rules of Court, Rule 3.1332, and claims that good cause exists because of the “delay in responding to discovery requests on the part of Plaintiff/Cross-Defendant.” In a subsequent declaration filed by Calicraft’s lead trial counsel, Josh Davis, Calicraft now states additional basis based on the unavailability of trial counsel due to a scheduled medical procedure.

Hermitage filed an opposition to this Motion on April 13, 2026. Hermitage contends, in its opposition, that this is second trial continuance and should be denied pursuant to California Rules of Court, Rule 3.1332(a) which states, “To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.”

Analyses

A trial continuance should be granted upon a showing of good cause. (CRC Rule 3.1332(c)). Good cause is demonstrated by a factual showing stating the reasonable grounds for the order sought. (*Board of Medical Quality Insurance v. Gherardine* (1979) 21 Cal.App.3d 669, 681.) The decision whether to grant a motion for continuance is within the trial court’s discretion. (*Color-Vue, Inc. v. Abrams* (1996) 44 Cal.App.4th 1599, 1603; *Jurado v. Toys “R” Us* (1993) 12 Cal.App.4th 1615, 1617.) However, “the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error.” (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.) “Such decisions must be made in an atmosphere of substantial justice.”

Pursuant to CRC Rule 3.1332(c)(1), although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: “(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances.” Upon review of the declaration of Counsel Davis, the Court finds

that Calicraft meets the requirement of this ground.

The Court is not persuaded that the discovery disputes and delays articulated by Calicraft are sufficiently supported by facts that show diligence by Calicraft. Although counsel's declaration state otherwise, the Court is previously unaware of any discovery disputes, as the Register of Actions contains no discovery motions filed. Nonetheless, if discovery issues prevented preparation for trial, the Court would have expected motion practice to resolve these issues.

Based on the foregoing, the Court finds good cause to continue the trial date.

Ruling

1. Defendant Calicraft LLC's Motion to Continue Trial is **granted**.
2. The Court orders that Discovery is now **closed**, except for expert discovery.
3. Counsel are ordered to meet and confer to resolve any existing discovery disputes. Since Discovery is closed, no discovery motions will be entertained by the Court, with the exception of any discovery motions related to expert discovery. If the Parties are unable to resolve the discovery issues informally, they shall meet and confer to retain a discovery referee.
4. Counsel Josh Davis is ordered to provide additional information from his health care provider that verifies the facts set forth in his declaration filed on April 22, 2026 no later than fourteen (14) from the date of this order. Medical information may be submitted under seal by hard copy to Department 16.
5. The Parties are ordered to appear via Zoom on August 27, 2026 at 8:30 a.m. for a trial setting conference.
6. Calicraft's counsel shall prepare and e-file a proposed order conforming to this ruling approved as to form by Hermitage's counsel, no later than ten (10) days from the date of this hearing, attaching a copy of this tentative ruling.

11. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL**
FILED BY: WHEATON, R.N., JEFF
TENTATIVE RULING:

Summary

This tentative ruling is for Lines 11, 12 and 13. The following three (3) Motions are calendared for hearing on April 29, 2026:

1. Defendant Jeff Wheaton, R.N., ("Wheaton") motion to seal Plaintiff Michelle Daly's ("Plaintiff") medical records from Persons Plastic Surgery, Elite MD, Skin Spirit Inc., Portrait Health, and For Your Eyes Only, which Defendant seek to include as exhibits in Defendants Motion for Summary Judgment filed on December 16, 2025.